Pregnant persons

The analytical category *pregnant persons* consists of those who are systematically subordinated along some dimension (economic, political, legal, social, etc.) due to (actually or potentially) observed or imagined bodily features presumed (taken, suspected, expected, etc.) to be evidence of a (present, previous, or future) body socially interpreted as pregnant.

Given that the social meaning of pregnancy is a dimension of the social meaning of sex, discrimination against pregnant persons qua pregnant persons is ipso facto discrimination on the basis of sex within the legally relevant meaning of “sex”

Ding, “Pregnant Persons as a Gender Category: A Trans Feminist Analysis of Pregnancy Discrimination,” *Signs* 50.3 (Spring 2025)

Pregnancy is already gendered even if it is not gendered *woman* or even sexed *female*; to disentangle pregnancy from womanhood is *not* to "ungender" pregnancy

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The interpretation of bodies as trans represents another family of ways in which bodies may be interpreted socially as sexed—as gender-disordered, as inconsistently/insufficiently/clockably/unexpectedly/confusingly/upsettingly/disgustingly male or female, etc.